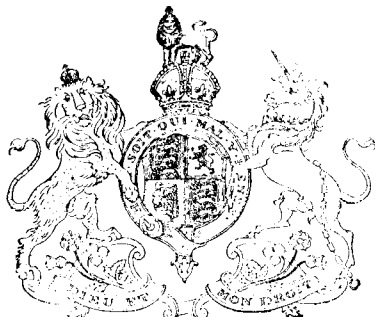




CHAPTER ccix.

An Act to authorise the Bournemouth Gas and Water Company to acquire additional lands to construct works and for other purposes. A.D. 1903.
[11th August 1903.]

WHEREAS by the Bournemouth Gas and Water Act 1873 (hereinafter referred to as “the Act of 1873”) and the Bournemouth Gas and Water Act 1878 (hereinafter referred to as “the Act of 1878”) and the Bournemouth Gas and Water Act 1896 (hereinafter referred to as “the Act of 1896”) the Bournemouth Gas and Water Company (hereinafter referred to as “the Company”) were incorporated and authorised to construct and maintain gasworks and waterworks and to supply gas and water within the limits by those Acts respectively prescribed :

And whereas by the Bournemouth Gas and Water (Poole Gas Transfer) Act 1902 (hereinafter referred to as “the Act of 1902”) the Company were authorised to acquire the undertaking of the Town and County of Poole Gas and Coke Company Limited and to extend their limits of supply :

And whereas having regard to the extended limits of supply of the Company and the increased demand for gas it is expedient that the Company be authorised to extend and improve their gasworks :

And whereas it is expedient that power should be conferred on the mayor aldermen and burgesses of the town and county borough of Poole (hereinafter referred to as “the Poole Corporation”) and the Poole Harbour Commissioners to enter into agreements with the Company for the purposes of this Act and to carry out certain works in place of the Company :

And whereas it is expedient to make the further provisions as to capital herein contained :

And whereas it is expedient that the provisions hereinafter contained be made :

A.D. 1903. — And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas plans and sections showing the lines and levels of the works by this Act authorised and a book of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes of this Act were duly deposited with the clerk of the peace for the county of Dorset and the town clerk and the clerk of the peace for the town and county and borough of Poole and are in this Act referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short titles. 1. This Act may be cited as the Bournemouth Gas and Water Act 1903 and the Act of 1873 the Act of 1878 the Act of 1896 the Act of 1902 and this Act may be cited as the Bournemouth Gas and Water Acts 1873 to 1903.

Incorporation of enactments. 2. The following Acts and parts of Acts (namely) :—
The Lands Clauses Acts ;
The Gasworks Clauses Act 1847 ;
The Gasworks Clauses Act 1871 ;

so far as the same are applicable for the purposes of and not inconsistent with the provisions of this Act are incorporated with and form part of this Act.

Interpretation. 3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Power to take lands. 4. Subject to the provisions of this Act the Company may enter upon take hold and use the lands and hereditaments which are shown on the deposited plans and described in the deposited book of reference.

Corrections of errors &c. in deposited plans and book of reference. 5. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices for the correction thereof and if it appear to the justices

that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Dorset and a duplicate thereof shall also be deposited with the town clerk of the borough of Poole and with the clerk of the peace for the town and county and borough of Poole and such certificate and duplicates thereof shall be kept by such clerks of the peace and town clerk with the other documents to which the same relates and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

A.D. 1903.

6. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

7. In lieu of purchasing any lands vested in or belonging to the Poole Corporation which the Company are by this Act authorised to purchase the Company may by agreement accept and take leases for long terms not exceeding nine hundred and ninety-nine years of such lands from the Poole Corporation and the Poole Corporation are hereby authorised to grant the same.

Power to lease for long terms in lieu of purchase.

8. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

9. Subject to the provisions of this Act the Company may make and maintain in the lines and situations and upon the lands delineated upon the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the several works shown on the deposited plans together with all necessary or proper embankments roads approaches apparatus buildings and conveniences connected with or ancillary to the works or any of them or necessary for inspecting maintaining repairing managing working and using the same and for any

Power to make works.

A.D. 1903. — temporary works incidental thereto The works shown on the deposited plans and sections and authorised by this Act comprise the following being situate in the parish of Saint James in the borough of Poole in the county of Dorset (that is to say):—

- (1) An embankment in continuation of the existing new quay commencing at the eastern end of the said new quay at a point about eleven yards north of the south-eastern angle of the said new quay and proceeding for a distance of about forty-nine yards eastward in a line with the face of the quay thence in a north-easterly direction for a distance of about one hundred and four yards and terminating on the south-western side of East Quay Road at a point opposite the centre of Stanley Road at its junction with East Quay Road :
- (2) A road diversion for the purpose of diverting the road leading from the junction of East Quay Road and Stanley Road to the new quay commencing at the eastern end of the said new quay and terminating on the south-western side of East Quay Road at a point opposite the centre of Stanley Road at its junction with East Quay Road and a stopping and discontinuance of so much of the site of the said road as is within the limits of the lands described in the Schedule to this Act :
- (3) The stopping up and discontinuance of so much of East Quay Road as lies between the existing Poole Gasworks of the Company and the lands numbered 6 5 4 16 17 and 18 on the deposited plans.

Agreements
between
Company
and Poole
Harbour
Commis-
sioners and
Poole Cor-
poration.

10. The Company on the one hand and the Poole Harbour Commissioners and the Poole Corporation respectively on the other hand may and are hereby authorised to enter into agreements with respect to the following purposes or any of them (that is to say):—

The construction by the Poole Harbour Commissioners of Work No. 1 described in the preceding section or some part thereof :

The construction by the Poole Corporation of Works Nos. 2 and 3 described in the preceding section or either of them or any part thereof :

And the Poole Corporation and the Poole Harbour Commissioners are respectively hereby authorised to construct the said works or any part thereof in lieu of the Company.

Power to
deviate.

11. In the construction of the works authorised by this Act the Company may deviate laterally to any extent not exceeding the

limits of lateral deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

A.D. 1903.

12. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Works below high-water mark not to be commenced without consent of Board of Trade.

13. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Company on in over hrough or across tidal lands or tidal water or of the intended site of any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Survey of works by Board of Trade.

14. If a work constructed by the Company on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Abatement of work abandoned or decayed.

15. If the embankments and works by this Act authorised are not completed within five years from the passing of this Act the powers by this Act granted to the Company for making the same or otherwise in relation thereto shall cease except as to so much thereof as shall be then completed.

Period for completion of works.

A.D. 1903.

Application
of Harbours
Docks and
Piers Clauses
Act 1847.

16. The provisions of the Harbours Docks and Piers Clauses Act 1847 shall so far as they are applicable apply to the construction of the embankment in continuation of the new quay by this Act authorised and the said embankment shall on completion vest in and become part of the undertaking of the Poole Harbour Commissioners and the said Commissioners shall hold the same in all respects as if it were part of their original undertaking.

Extinguish-
ment of
rights of
way.

17. All public rights of way over or along the roads which shall under the provisions of this Act be diverted stopped up or discontinued shall be extinguished as from the date of such diversion stopping up or discontinuance and the Company may appropriate and use for the purposes of their undertaking so much of the sites of the portions of the roads so diverted or stopped up as are within the limits of the lands described in the Schedule to this Act But any such road shall not be stopped up or discontinued unless and until the road diversion by this Act authorised is completed to the satisfaction of two justices Provided that the Company shall before applying to the said justices for their certificate that the said road diversion is completed to their satisfaction give seven days' notice in writing of their intention to apply for the same to the Poole Corporation and to the Poole Harbour Commissioners.

Construction
of gantries.

18. The Company may construct and maintain gantries over the quay known as the new quay and the extension thereof authorised by this Act so as to enable the Company to obtain access thereover to Poole Harbour or to the foreshore thereof.

Power as to
construction
and main-
tenance of
gasworks &c.

19. Subject to the provisions of this Act the Company may upon the lands described in the Schedule to this Act erect maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of supply of the Company and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas :

Provided that the Company shall not erect or construct retorts on the lands described under the headings (F) (G) (H) and (J) in the Schedule to this Act.

Restriction
on taking
houses of
labouring
class.

20. The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December next before the passing of this Act were occupied

wholly or partially by persons belonging to the labouring class as tenants or lodgers nor except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. A.D. 1903.
—

If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression “house” means any house or part of a house occupied as a separate dwelling and the expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

21. Sections 36 and 37 of the Act of 1896 shall be read and have effect as if the sum of four hundred thousand pounds had been inserted in those sections instead of the sum of three hundred thousand pounds and for the purposes of section 46 of the said Act of 1896 the expression “undertaking” means the gas and water undertaking of the Company carried on by them subject to the provisions of the Bournemouth Gas and Water Acts 1873 to 1903. Amendment
of Act of
1896.

22. The Company may apply or may raise and apply for any of the purposes of this Act which are to be executed by them and to which capital is properly applicable any moneys which they may have already raised or are authorised to raise by the Bournemouth Gas and Water Acts 1873 to 1903 or any of them. Application
of moneys.

23. The costs charges and expenses preliminary and of and incidental to preparing obtaining and passing this Act shall be paid by the Company. Costs of Act.

A.D. 1903.

The SCHEDULE referred to in the foregoing Act.

Lands in the parish of Saint James in the borough of Poole in the county of Dorset (that is to say):—

- (A) Coal yard and premises land land with store and land adjoining sewerage works all belonging to or reputed to belong to the mayor aldermen and burgesses of the borough of Poole and occupied by Messrs. Hawes and Foster Messrs. Grounds and Newton Bournemouth Gas and Water Company and the said mayor aldermen and burgesses of the borough of Poole respectively;
- (B) The four cottages stables stores garden ground and premises on the south-east side of East Quay Road with the approach road thereto belonging or reputed to belong to William Allen John Durrell Hall and Woodhouse and Mary Joyce and occupied by John Hayes James Allen James Medway Charles Cooper Henry Weldon Henry Tilsed Alfred Greenslade and Mary Joyce;
- (C) Portions of the public road known as East Quay Road and of the road leading from the quay to Stanley Road; and
- (D) A portion of the quay and foreshore above and below high-water mark of ordinary tides on the south side of the road leading from the quay to Stanley Road:

The before-mentioned lands (A) (B) (C) and (D) comprising three acres one rood and five perches or thereabouts are bounded on the north and north-east partly by East Quay Road and partly by the existing Poole Gasworks of the Bournemouth Gas and Water Company on the west and south-west partly by East Quay Road partly by the road at right angles to East Quay Road connecting East Quay Road and the quay and partly by the quay on the south partly by the quay and partly by an imaginary line drawn from a point about twenty-seven yards east of the south-east corner of the roadway connecting East Quay Road and the quay to a point about eight yards to the south thereof thence in an easterly direction for a distance of about eighty yards parallel to the face of the quay thence in a north-easterly direction for a distance of about fifteen yards to high-water mark of ordinary tides at a point about fifty-eight yards west of the centre of the lifeboat station and on the east by an imaginary line drawn from the last-mentioned point to the south-east angle of the said Poole Gasworks of the Bournemouth Gas and Water Company:

- (E) The house garden ground and meadow land known as “Beech Hurst” including the approach road thereto from Mount Street;
- (F) The plot of land numbered 4 shown upon the Ordnance map scale $\frac{2500}{1}$ Dorset sheet XLIII. 16 second edition 1902;
- (G) The plot of land or “saltings” numbered 2 on the aforesaid map;
- (H) The plot of land numbered 3 on the aforesaid map;

(I) The four cottages and premises in Herbert Road belonging or reputed to belong to Philip Edward Lionel Budge and occupied by William Ryley Ernest Galop Elizabeth Wallingford and Harry Heath respectively; and

(J) A portion of the foreshore below high-water mark of ordinary tides known as "Mudlands" and belonging or reputed to belong to the mayor aldermen and burgesses of the borough of Poole:

The before-mentioned lands (E) (F) (G) (H) (I) and (J) comprising seventeen acres one rood or thereabouts are bounded on the north and north-east partly by the accommodation road giving access to the premises known as "Beech Hurst" and the said land (F) numbered 4 on the said Ordnance map and partly by the London and South Western Railway and land belonging or reputed to belong to the London and South Western Railway Company on the north-west partly by the accommodation road before referred to and partly by High Street and on the south-west and west partly by the rear of the premises on the north-east of Mount Street partly by Herbert Road partly by the rear of the premises numbered 15 to 57 (odd) in Emerson Road partly by the rear of premises numbered 1 to 23 (odd) in Green Lane and partly by the plot of land numbered 9 on the Ordnance map scale $\frac{1}{25,000}$ Dorset sheet XLIV. 13 second edition 1902 and on the south-east partly by Herbert Road partly by the house and premises numbered 57 Emerson Road and partly by an imaginary line drawn from a point on the London and South Western Railway distant about five hundred and five yards in a south-easterly direction from the centre of High Street to a point situated at high-water mark of ordinary tides about forty-five yards south-east of the west corner of the premises numbered 1 Green Lane.

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